



THIS MUTUAL NON-DISCLOSURE AGREEMENT

is made on March 17, 2026

BETWEEN

Mal Digital Ltd (“**Mal**”), a private company limited by shares formed in the Abu Dhabi Global Market, whose office address is Floor 21, Sky Tower, Shams Abu Dhabi, Al Reem Island, Abu Dhabi, United Arab Emirates;

and

Abhi Fintech Limited (“**Abhi**”), a company established under the laws of the Dubai International Financial Centre in the United Arab Emirates with company registration number 4529, whose principal address is Unit GA-00-SZ-L1-RT-201, Level 1, Gate Avenue, Dubai International Financial Centre, Dubai, United Arab Emirates;

each of which shall hereinafter be individually referred to as “**Party**” and jointly as “**Parties**.”

This Agreement provides for the disclosure by each Party (“**Discloser**”) to the other Party (“**Recipient**”) of information the Discloser deems confidential.

BACKGROUND

- (A) The Recipient wishes to receive from the Discloser certain information belonging to the Discloser for the Purpose (as defined below);
- (B) In order to facilitate the Purpose (as defined below), the Discloser wishes to disclose to the Recipient valuable information which is of a confidential nature; and
- (C) This Agreement provides for the terms and conditions of disclosure of such Confidential Information by Discloser to the Recipient.

1. DEFINITIONS

In this Agreement the following expressions shall have the following meanings unless inconsistent with the context:

“**Confidential Information**” means all information in respect of the business of the Discloser, the Purpose or the contents of this Agreement, including, without prejudice to the generality of the foregoing, any documents, information, ideas, services, business methods, financial details, marketing information, compliance and regulatory information, management structure and the like, pricing lists, processes, marketing, development or manpower plans, know-how, drawings, data, sketches, plans programs, specifications, supplier or customer lists or details, business associates, investor or client details/ contacts, products and/or services; computer systems and software, trade secrets, work product, data, software, source code, object code, inventions and other materials, research, design or development details and any supportive or incidental information like the trademarks, copyrights, materials, and all other proprietary and intellectual property rights relating to the Discloser, and all information relating to the Purpose.

“**Commencement Date**” means the date of this Agreement as stated above.

“**Purpose**” means evaluation of a potential business relationship between the Parties.



2. DISCLOSURE

- 2.1. On and from the Commencement Date the Discloser shall (to the extent that it has not done so already) disclose to the Recipient details of the Confidential Information to satisfy the Purpose. The Recipient confirms that the duty of confidentiality imposed by this Agreement extends to any Confidential Information which has been, or may have been, supplied to it before the Commencement Date despite the absence of a written agreement, this Agreement merely recording in writing the oral confidentiality obligations under which the Recipient received the Confidential Information in question.
- 2.2. The Recipient agrees:
- 2.2.1. that it will not use the Confidential Information other than for the Purpose; and
 - 2.2.2. that it will keep secret and confidential all Confidential Information and take all security precautions in the safekeeping of the Confidential Information, using at least the same amount of care that it uses for its own confidential information.
- 2.3. The Recipient shall only disclose the Confidential Information to those of its directors, employees or professional advisors in each case only on a need-to-know basis and when these persons or entities agree to treat the Confidential Information securely and in accordance with the terms of this Agreement; provided that such Recipients are subject to confidentiality with respect there under law or by contract.
- 2.4. The confidentiality obligations on the Recipient in this Agreement shall not extend to information which the Recipient can prove to the Discloser's reasonable satisfaction:
- 2.4.1. is or in the future comes into the public domain (unless as a result of a breach of this Agreement);
 - 2.4.2. was at the date of this Agreement already in the possession of or known to the Recipient and which was not subject to any obligation of confidence before it was disclosed to the Recipient;
 - 2.4.3. has been received from a third party who did not acquire it in confidence; or
 - 2.4.4. is required pursuant to any statutory, legal or parliamentary obligation placed upon the Party making the disclosure or the rules of any stock exchange or governmental or regulatory authority having the force of law or if not having force of law, compliance with which is in accordance with the general practice of persons subject to the stock exchange or governmental or regulatory authority concerned; provided that the Recipient shall limit the disclosure of the Confidential Information to the maximum extent possible and shall, to the extent legally permissible, notify the Discloser of such disclosure in advance thereof.

3. TERM AND TERMINATION

- 3.1. This Agreement commences on the Commencement Date and shall remain in force for two (2) years ("**Term**"). The undertakings and other terms set out in this Agreement will survive for a period of two (2) years following termination or expiry of the Term.
- 3.2. Any copy of the Confidential Information made by the Recipient, including, but not limited to, any notes, or drawings, or recordings of any demonstrations, or notes of oral disclosures of Confidential Information,



(including any recordings of transmissions over telephone lines or via radio or microwave), shall become the property of the Discloser immediately on creation and shall be returned by the Recipient to the Discloser on demand.

- 3.3. The Recipient undertakes to the Discloser, on request by the Discloser at any time, to return to the Discloser any and all Confidential Information supplied to it (including any copies referred to in clause 3.2) and further undertakes, if so requested by the Discloser, to supply the Discloser with a statutory declaration given by a director/officer of the Recipient declaring that such documents and things so delivered comprise all the Confidential Information (or copies thereof as indicated under clause 3.2) in the Recipient's power, possession or control, and that no Confidential Information has been retained by the Recipient, or is held by a third party, in circumstances where it may come into the power, possession or control of the Recipient.
- 3.4. Upon any request by the Discloser under clauses 3.2 and 3.3, the Recipient's rights to use the Confidential Information for the Purpose shall cease.

4. INTELLECTUAL PROPERTY RIGHTS, WARRANTIES AND DISCLAIMERS

- 4.1. The Discloser retains all intellectual property rights in the Confidential Information at all times and for all purposes including the copyright or any other intellectual property right in materials produced by the Recipient relating to the Confidential Information.
- 4.2. Nothing contained in this Agreement is to be construed as granting or conferring any rights by license or otherwise, expressly, or by implication, in respect of any intellectual property right in, or any invention, discovery or improvement made or acquired by the Discloser before or after the date of this Agreement relating to, the Confidential Information.
- 4.3. The Recipient acknowledges and agrees that (except as may otherwise be provided in any future agreement regarding the Purpose), the Confidential Information provided to it does not purport to be comprehensive and the Discloser gives no warranty, express or implied, in respect of the accuracy, reliability or completeness of the Confidential Information.
- 4.4. The Discloser accepts no responsibility for any expenses or losses incurred or actions undertaken by the Recipient as a result of the Recipient's receipt of the Confidential Information. It is understood by the Recipient that the Discloser does not warrant or represent that it will enter into any further contract with the Recipient in connection with the Purpose.

5. ANNOUNCEMENTS

The existence of this Agreement, and of any relationship between the Parties concerning the Confidential Information, is confidential and neither Party will publish, or permit to be published, any information about their relationship or about the Purpose, unless that information has first been approved for publication by the other Party.

6. ASSIGNMENT

No Party may assign this Agreement without the prior written consent of the other Party.



7. REMEDIES

Without prejudice to any other rights and remedies that the Discloser may have, the Recipient agrees that the Confidential Information is valuable and that damages may not be an adequate remedy for any breach by the Recipient of this Agreement. The Recipient agrees that the Discloser will be entitled without proof of special damage to the remedies of an injunction and other equitable relief for any actual or threatened breach by the Recipient of this Agreement.

8. ENTIRE AGREEMENT/RELIANCE ON REPRESENTATION

This Agreement contains all the terms which the Parties have agreed in relation to the subject matter of this Agreement and supersedes any prior written or oral agreements, representations or understandings between the Parties. Neither Party to this Agreement has been induced to enter into this Agreement by a statement or promise which they do not contain save that this clause shall not exclude any liability which one Party would otherwise have to the other in respect of any statements made fraudulently by that Party.

9. VARIATION

No variation of this Agreement shall be effective unless in writing and signed by a director or other duly authorized officer of each of the Parties.

10. WAIVER

No failure or delay by any Party to exercise any right, power or remedy will operate as a waiver of it nor will any partial exercise preclude any further exercise of the same, or of some other right, power or remedy.

11. GOVERNING LAW AND JURISDICTION

This Agreement and any non-contractual obligations arising out of or in connection with it are governed by the laws of Abu Dhabi Global Market (“**ADGM**”), expressly excluding conflict of law principles. Any dispute or difference of any kind between the Parties in connection with or arising out of this Agreement or the breach, termination or validity hereof (“**Dispute**”) shall be finally settled in accordance with the rules promulgated by the International Chamber of Commerce Arbitration Rules in force on the date of the submission of the request for arbitration (“**Rules**”). Notwithstanding the foregoing, either Party may seek injunctive relief in any court of competent jurisdiction against the improper use or disclosure of Confidential Information. It is hereby agreed that:

- (a) the seat of the arbitration shall be the ADGM;
- (b) there shall be one arbitrator appointed in accordance with the Rules;
- (c) the language of the arbitration shall be English;
- (d) the award shall be in writing and shall set forth in reasonable detail the facts of the Dispute and the reasons for the tribunal's decision; and
- (e) the award in such arbitration shall be final and binding upon the Parties and judgment thereon may be entered in any court having jurisdiction for its enforcement.

12. NOTICES

Any notice, demand or communication in connection with this Agreement shall be in writing and may be delivered by hand or by courier to the address set forth for such Party in the Preamble or such other address as may be notified in writing from time to time.



13. COUNTERPARTS

This Agreement may be executed in any number of counterparts, each of which so executed and delivered shall constitute an original but together shall constitute one and the same instrument.

SIGNED BY the duly authorized representatives of the Parties on the date stated at the beginning of this Agreement.

SIGNED BY: For and on behalf of: Mal Digital Ltd Signed by:  6EE215C3B13E471 Angel Wesley CLO	SIGNED BY: For and on behalf of: Abhi Fintech Limited Signed by:  92614102976D4C4... Omair Muzaffer Ansari CEO
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